

3.	26CV0275	CENTRAL PARK SYSTEMS CORP, D/B/A FORTIS TELECOM vs. CAPITOL IT PARTNERS, INC. ET AL
Preliminary Injunction/Stay Proceedings		

Plaintiff (“Fortis”) filed this action on January 29, 2026, against Defendants Capitol IT Partners, Inc. (“CIP”) and Jason Howard, an individual, alleging Interference with Contractual Relations, Trespass to Chattels, and Unfair Competition regarding an agreement for the transition of operational responsibility for customer billing functions (“Agreement”) as part of a larger transition of CIP’s business to Fortis. Fortis claims that CIP has obstructed access to its technology systems and thereby prevented Fortis from administering the business functions. Many of the actions required to accomplish the transition must be performed by Defendant Howard, and Fortis claims that Howard has not cooperated to accomplish the transitional process contemplated by their Agreement.

Several months before this action as filed in El Dorado County, Howard filed an action in Placer County that arises from the same Agreement. Defendant has filed a motion to stay the proceedings in this Court because of the concurrent action in Placer County that is based on the same controversy. Plaintiff argues that this Court has acquired jurisdiction while the Placer County Court is not yet at issue because, as of January 26, 2026, the Minute Order resulting from the Case Management Conference in the Placer County case noted that Defendants and not yet been served in that case, not had they filed any pleading responsive to the Placer County Complaint. Under these circumstances, the El Dorado County Court has jurisdiction to proceed with the case. Plant Insulation Co. v. Fibreboard Corp., 224 Cal. App. 3d 781 (1990); People ex rel. Garamendi v. Am. Autoplan, Inc., 20 Cal. App. 4th 760 (1993); Figgs v. Superior Ct. of Los Angeles Cnty., 204 Cal. App. 2d 231 (1962).

Request for Judicial Notice

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. Evidence Code § 453.

Evidence Code § 452(d) permits judicial notice of “records of (1) any court in this state or (2) any court of record of the United States.” Accordingly, Plaintiff’s request for judicial notice is granted.

Preliminary Injunction

Plaintiff has moved for a preliminary injunction to:

1. Restore Fortis's administrative access and control over its core platforms and vendor portals.
2. Enjoin Defendants from interfering with, disabling, or conditioning Fortis's administrative access and control over those core platforms and vendor portals; and
3. Order Defendant to take all reasonable steps necessary to restore Fortis's administrative access and control over its core platforms and vendor portals.

Standard of Review

The determination whether to issue a preliminary injunction pending trial on the merits requires the trial court to exercise its discretion by considering and weighing:

'two interrelated factors,' specifically, the likelihood that plaintiffs will prevail on the merits at trial, and the comparative harm to be suffered by plaintiffs if the injunction does not issue against the harm to be suffered by defendants ... if it does." (*King v. Meese* (1987) 43 Cal.3d 1217, 1226, 240 Cal.Rptr. 829, 743 P.2d 889.) The more likely it is that plaintiffs will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue. (*Id* at p. 1227, 240 Cal.Rptr. 829, 743 P.2d 889.) Further, "if the party seeking the injunction can make a sufficiently strong showing of likelihood of success on the merits, the trial court has discretion to issue the injunction notwithstanding that party's inability to show that the balance of harms tips in his favor. [Citation.]" (*Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 447, 261 Cal.Rptr. 574, 777 P.2d 610.)

Right Site Coal. v. Los Angeles Unified Sch. Dist., 160 Cal. App. 4th 336, 338–39, 72 Cal. Rptr. 3d 678, 680 (2008).

The court "examines all of the material before it in order to consider 'whether a greater injury will result to defendant from granting the injunction than to the plaintiff from refusing it.'" Bennett v. Lew, 151 Cal. App. 3d 1177, 1183, (1984). "In making that determination the court will consider the probability of the plaintiff's ultimately prevailing in the case and, it has been said, will deny a preliminary injunction unless there is a reasonable probability that plaintiff will be successful in the assertion of his rights." Id.

It is a rule so universally followed and so often stated as to need only to be referred to that the granting, denying, dissolving, or refusing to dissolve a preliminary or temporary injunction rests in the sound discretion of the trial court upon a consideration of all the particular circumstances of each individual case." It is further the rule that "The discretion, however should be exercised in favor of the party most likely to be injured."

McCoy v. Match, 128 Cal. App. 2d 50, 52, (1954) (citations omitted).

The Court's files reflect no Opposition filed to the preliminary injunction request. Pursuant to Local Rule 7.10.02(B), the failure to file an Opposition "may be deemed, in the

March 27, 2026
Dept. 9
Tentative Rulings

Court's discretion, as a waiver of any objections and may be treated as an admission that the motion or other application is meritorious. The Court, in its discretion, may also grant the motion."

TENTATIVE RULING #3: PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE IS GRANTED. DEFENDANT'S MOTION TO STAY THE PROCEEDINGS IS DENIED. PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION IS GRANTED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.